

ASCII MASTER FLOW - PANEL 1/12: Constitutional change and limited constituent power

CONSTITUTIONAL CHANGE

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+-- EXPRESS ORDINARY-LAW ROUTES OUTSIDE ARTICLE 368
|   +-- Articles 2-4, 11, 169, 239A; Fifth/Sixth Schedule mechanisms
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+-- ARTICLE 368 SPECIAL MAJORITY
|   +-- majority of total membership of each House
|   +-- not less than two-thirds present and voting
|
+-- SPECIAL MAJORITY + RATIFICATION BY NOT LESS THAN HALF THE STATES
    +-- only the exact federal proviso subjects
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PART XX / ARTICLE 368 -> constituent power -> addition, variation or repeal

BASIC-STRUCTURE LIMIT -> every Part amendable; constitutional identity indestructible

ANSWER LINE -> India enables constitutional transformation, not constitutional self-destruction.

ASCII MASTER FLOW - PANEL 2/12: Three routes and majority distinctions

ROUTE 1: OUTSIDE ARTICLE 368

Articles 2-4 -> State reorganisation + consequential First/Fourth Schedule change

Article 11 -> citizenship law

Article 169 -> special State Assembly resolution, then ordinary parliamentary law

Article 239A / Fifth para 7 / Sixth para 21 -> express non-368 mechanisms

Other authorised fields -> quorum, salaries, procedure, privileges, election machinery,
delimitation, court strength/jurisdiction, language, Schedule details

ROUTE 2: ARTICLE 368 SPECIAL MAJORITY

majority of TOTAL MEMBERSHIP + 2/3 PRESENT AND VOTING in EACH House

ROUTE 3: ROUTE 2 + STATES

ratification by resolutions of $\geq$ half State legislatures

DO NOT CONFUSE

effective majority = then-existing strength after vacancies, used elsewhere

Article 368 total membership = full sanctioned strength

ASCII MASTER FLOW - PANEL 3/12: Exact Article 368 procedure

BILL

- +-- either House of Parliament
- +-- minister OR private member
- +-- no prior Presidential recommendation

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EACH HOUSE PASSES SEPARATELY

- +-- total-membership majority
- +-- two-thirds present and voting
- +-- no joint sitting under Article 108

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IF PROVISIO SUBJECT -> State ratification BEFORE Presidential presentation

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PRESIDENT SHALL ASSENT -> Constitution stands amended under the Act's terms

NO REFERENDUM | NO SPECIAL CONSTITUENT BODY | NO GENERAL PROCEDURAL TIME LIMIT

ARTICLE 107(5) -> narrow protection for a Bill pending in Rajya Sabha not passed by Lok Sabha

ASCII MASTER FLOW - PANEL 4/12: Federal ratification exact map

RATIFICATION REQUIRED FOR CHANGE TO

- +-- Articles 54 and 55 -> President's election and manner
- +-- Articles 73 and 162 -> Union/State executive power
- +-- Article 241 -> High Courts for Union territories
- +-- Article 279A -> GST Council
- +-- Chapter IV of Part V -> Union Judiciary
- +-- Chapter V of Part VI -> High Courts in States
- +-- Chapter I of Part XI -> legislative relations
- +-- any List in the Seventh Schedule
- +-- representation of States in Parliament
- +-- Article 368 itself

STATE ROLE

Parliament passes first -> State legislature ratifies/refuses by resolution -> President
no initiation | no rewriting | no UT count | no Governor-assent stage | no text-set deadline
TRAP -> Governor conditions are not listed; "SC/HC and federal matters" is incomplete shorthand.

ASCII MASTER FLOW - PANEL 5/12: Article 13 and the early amendability dialogue

SHANKARI PRASAD (1951)

amendment != "law" under Article 13(2) -> First Amendment upheld

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SAJJAN SINGH (1964/65)

rule reaffirmed -> separate opinions raise early structural doubts

|

GOLAK NATH (1967)

amendment treated as Article 13 law -> future FR abridgment barred

remedy = PROSPECTIVE OVERRULING, earlier amendments preserved

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24TH AMENDMENT (1971)

Article 13(4) + Article 368(1)/(3) -> constituent power express; President shall assent

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25TH AMENDMENT (1971)

property framework + Article 31C for Article 39(b)/(c)

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KESAVANANDA (1973)

broad amendability restored, but basic structure cannot be damaged

ASCII MASTER FLOW - PANEL 6/12: Kesavananda Bharati exact holding and remedy

KESAVANANDA BHARATI -> 24 APRIL 1973 -> 13 JUDGES -> 7:6

HELD

- +-- Parliament may amend EVERY PART, including FR and Preamble
- +-- 24th Amendment valid subject to the substantive limit
- +-- no amendment may damage/destroy/abrogate BASIC STRUCTURE
- +-- Article 31C protection for Article 39(b)/(c) substantially survived
- `-- conclusive exclusion of judicial scrutiny did not survive

NOT HELD

- +-- no closed unanimous feature list
- +-- no absolute textual freeze on Fundamental Rights
- +-- no free-standing statute test
- `-- no ban on transformative amendment

SEVERABILITY -> remove unconstitutional part if valid remainder can operate independently

FORMULA -> wide subject-matter power + identity-preserving limit = limited constituent power

ASCII MASTER FLOW - PANEL 7/12: Indira Gandhi, Forty-second Amendment and Minerva Mills

39TH AMENDMENT -> attempted insulation of specified election disputes

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INDIRA NEHRU GANDHI (1975)

free and fair elections + rule of law + judicial review protect democratic contestability

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42ND AMENDMENT (1976)

SECTION 4 -> Article 31C expanded to ALL Directive Principles

SECTION 55 -> Article 368(4) review exclusion + 368(5) unlimited power

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MINERVA MILLS (1980)

sections 4 and 55 void

+-- limited amending power = basic

+-- judicial review = basic

`-- harmony/balance of FR and DPSP = basic

ANSWER LINE -> A Constitution-created limited power cannot convert itself into sovereignty.

ASCII MASTER FLOW - PANEL 8/12: Ninth Schedule effect-based review

FIRST AMENDMENT (1951) -> ARTICLE 31B + NINTH SCHEDULE

ARTICLE 31A -> category protection | ARTICLE 31B -> listed-law validation

WAMAN RAO (decision 1980; reported 1981)

24 APRIL 1973 = prospective cutoff

pre-cutoff insertions not reopened on later basic-structure ground

post-cutoff inserting amendments open to challenge

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I.R. COELHO (2007), nine judges

affected Part III right

-> does its essence form a basic feature?

-> does Ninth Schedule immunity damage/destroy that feature?

-> if yes, invalidity/remedy

TRAP -> post-1973 means REVIEWABLE, not automatically void.

ASCII MASTER FLOW - PANEL 9/12: Case-attributed features and ordinary-law boundary

CASE-ATTRIBUTED FEATURES

Kesavananda opinions -> constitutional supremacy, democracy, secularism, federalism,
separation of powers, unity/integrity, dignity/liberty

Indira Gandhi -> free and fair elections, rule of law, judicial review

Minerva Mills -> limited power, judicial review, FR-DPSP harmony

S.R. Bommai -> federalism and secularism in Article 356 context

L. Chandra Kumar -> Articles 32 and 226/227 review powers

I.R. Coelho -> rights/basic-feature impact

NJAC (2015) -> judicial independence; 99th Amendment invalid

NO EXHAUSTIVE LIST -> identify feature + constitutional foundation + case + damaging effect

ANJUM KADARI (2024 INSC 831)

ordinary statute invalidity -> competence / Part III / another constitutional provision

basic structure -> interpretive context, NOT a free-standing statutory invalidation ground

ASCII MASTER FLOW - PANEL 10/12: Current amendment lifecycle controls

131ST AMENDMENT BILL, 2026

introduced 16 Apr -> division 17 Apr -> 298 ayes / 230 noes / 528 voting

total-membership limb: 272 required -> satisfied

two-thirds limb: 352 required -> failed

STATUS -> NEGATIVED | no law | no precedent | no joint sitting | no State stage

106TH AMENDMENT ACT, 2023

assent/enactment in 2023

-> S.O. 1922(E), 16 Apr 2026 COMMENCEMENT

-> ARTICLE 334A OPERATIONAL GATES

first post-commencement census -> relevant figures published -> delimitation

-> checked status: framework commenced; reservation not yet operational through gates

TRAP -> proposal, enactment, commencement and operation are separate legal statuses.

ASCII MASTER FLOW - PANEL 11/12: Evaluation, transformation and restraint

CRITIQUE

unwritten limit | open-ended list | uncertainty | counter-majoritarian judicial finality
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DEFENCE

Article 368 grants amendment, not destruction
democracy includes future elections, opposition, rights, federal voice and review
Minerva Mills -> limited power cannot erase its own limit
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SELF-RESTRAINT TEST

- 1 identify feature through text/structure/precedent
- 2 show its constitutional function
- 3 prove actual disabling damage, not policy disagreement
- 4 distinguish regulation/rebalancing from destruction
- 5 use severability and a narrow remedy where possible

TRANSFORMATIVE AMENDMENT -> legitimate innovation preserving identity

REPLACEMENT/NEW CONSTITUTION -> original constituent act, not Article 368 amendment

ASCII MASTER FLOW - PANEL 12/12: PYQ and answer-writing spine

DIRECT MAINS

2019 GS-II Q12 -> limited power -> 24th -> Kesavananda -> 42nd section 55 -> Minerva
2025 GS-II Q12 -> procedural limits + substantive limit under separate headings

ROUTED PRELIMS

2018 Ninth Schedule immunity | 2019 Amendments 39/99 | 2019 Ninth Schedule origin
2020 no textual basic-structure definition | 2022 recommendation/assent/joint sitting
2023 First Amendment response | 2024 addition/variation/repeal | 2025 ratification subjects

ANSWER ROUTE

demand -> route -> procedure -> case holding -> constitutional effect -> qualification -> verdict

FINAL VERDICT

Parliament may amend every Part and pursue transformative reform,
but cannot use Article 368 to destroy constitutional identity or make limited power absolute.